



File No.: EXP202204786

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 18, 2022, a complaint was filed with registration number REGAGE22e00008041211, REGAGE22e00008042079, REGAGE22e00008042891, and REGAGE22e00008044512 before the Spanish Agency for Data Protection against BANCO CETELEM, S.A. with NIF A78650348 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are being demanded to pay a debt associated with the contracting of a loan to finance the purchase of a kitchen, without their consent, and usurping their identity.

Along with the notification, an unsigned contract and a complaint made to the complained party are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on April 25, 2022, as evidenced by the acknowledgment of receipt in the file.

On May 25, 2022, a response was received by this Agency indicating that all required protocols for the signing of the contract were followed, stating that for the signing of the credit line contract, the complainant was required to provide all mandatory documentation for the identification of the signer and income (ID, payslip, bank receipt, and phone bill), which was provided, thus confirming their identity.

THIRD: On June 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

The representatives of the entity state that the chronology of events is as follows:

1. On October 25, 2021, the person identifying as the complainant registered a credit line contract with Cetelem, specifically a Credit Card Contract under the Flexipago System.
2. On December 1, 2021, after the return of 2 receipts, the customer enters phase 2, and on December 9, 2021, an email is sent to the person identified as the complainant informing them of their debt and the situation of non-payment.
3. On December 15, 2021, a text message is sent to the phone number provided by the person identified as the complainant, requesting them to contact the entity.
4. As of December 16, 2021, the complainant/customer reacts to the message sent and contacts Banco Cetelem. An interview is held to verify data, and the customer is informed of the protocol for filing a complaint in situations of Fraud as alleged. Relevant information is provided, and they are requested to file the complaint.
5. In order to file the corresponding complaint, as informed by Banco Cetelem, on December 17, 2021, the contract is sent to the complainant.
6. To date, no complaint has been received by the Authorities regarding this Fraud situation.
7. Throughout January 2022, unpaid debts accumulate, and several communications occur. Among

them, on January 18, a call is received from the complainant from a different phone than the one provided, indicating that no other contact phone will be provided.

8. On January 24, 2022, the Complaints Department responded again to the complainant's request, informing them, among other things, of the need to go to the Authorities to report the events regarding their allegedly fraudulent contracting.

9. On February 18, 2022, in response to another request from the complainant to the Complaints Department of Banco Cetelem, the complainant is once again urged to go to the Competent Authorities.

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10. After several contacts informing about the situation and requesting a complaint to the competent authority, on February 24, 2022, the claimant is informed that the matter is now contentious.

11. On February 25, 2022, the card is canceled.

Regarding the documentation required at the signing of the contract from the claimant, representatives of Banco Cetelem indicate that mandatory documentation for the identification of the signer and income was provided for the signing of the credit line contract. Specifically, the claimant was asked for a National Identity Document, payslip, bank receipt, and phone bill.

They provide a copy of all the documentation required at the signing of the contract:

1. Tax Identification Document of the claimant on both sides.
2. Proof of Income corresponding to the identity of the claimant.
3. Bank direct debit receipt corresponding to the claimant's data, being the mobile phone bill.
4. Bank receipt showing the data identifying the claimant.

Procedure followed by Banco Cetelem to verify the identity of the claimant:

1. On October 15, 2021, the person identified as the claimant proceeds to initiate financed purchase operations on the web portal.
2. As the contracting process continues, internal validations of the Expert System and other prior validation processes are carried out.
3. Once authorization to carry out the operation is obtained, the Entity requires the identifying documentation. The procedure requires the claimant's tax identification document on both sides, proof of income, bank receipt, and mobile phone bill.
4. The contracting of the aforementioned loan was carried out online through an electronic signature process validated by a trusted third party (LOGALTY) that certifies that the process was carried out with verification of the identity of the contractor by sending an SMS to the phone provided in the loan application, attaching the contractual documentation and a code that had to be entered into the system to proceed with the electronic signature of the contract.
5. Once the documentation is provided, the operation study begins.

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6. Finally, the operation passes through automatic validation processes of the identification document (DNI), the General Treasury of Social Security (payslip), and documentation according to the entity's risk manual. The representatives of the entity provide a copy of the digitally signed contract.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h)

of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of application, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of data.

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personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data can only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law."

III

Article 6 of the GDPR regulates the lawfulness of processing, establishing the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a

third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

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IV

Conclusion

In the present case, BANCO CETELEM acted at all times in accordance with the established protocols to verify the identity of the claimant and the signing of the contract for a credit line (ID on both sides, proof of income, bank receipt, and mobile phone bill). These were presented by the claimant to access the credit line.

BANCO CETELEM also presents a contract digitally signed by the claimant.

Therefore, the processing of the data was carried out, according to the documentation received, with a legitimate basis for it, the execution of the contractual relationship of BANCO CETELEM with the claimant.

Regarding the transfer of data to a third party, it should be noted that in the first document the claimant sent to this Agency, she indicates that her father asked the person who called on behalf of CETELEM to send an email to her personal address with the contract in question, in order to report the facts to the police authorities.

It should be noted that CETELEM sends all communications to this email as there was no other way to contact the claimant.

Regarding the inclusion in the register of defaulters, one of the most commonly used means of communication is through the financial contract, when it warns of the possibility of including the debtor's data in a defaulters file in case of non-payment of debt, as is the case. It should be noted that the requirement for prior payment demand is maintained, but it is sufficient that the warning of inclusion in the defaulters file was made in the financial contract.

The claimant was informed of her inclusion in the register of defaulters via email dated January 10, 2022, sent to the address provided for the contract's dispatch.

The claimant indicates in her complaint that this is an identity theft since, in the data provided by the applicant in the contract, only her ID and name match; the account number, phone receipt, etc., are incorrect.

For its part, BANCO CETELEM informed her in its first communication that she should file a complaint with the competent authorities. There is no record that such a complaint has been made, except for the one submitted to this Agency.

The AEPD informs that it is competent to verify compliance with the regulations regarding data processing and not to determine the existence of a documentary forgery alleged by the interested party, a fact that must be reported to the competent authority.

Consequently, the present proceedings are archived as no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO CETELEM, S.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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